

26STCV17380 26STCV17380

County: los-angeles

Division: Civil Law and Motion

Department: 513

Hearing date: 2026-08-07

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Case Number: 26STCV17380 Hearing Date: August 7, 2026 Dept: 513

Superior

Court of California

County

of Los Angeles – Central District

Department 513

Katarina Campbell

;

Plaintiff,

vs.

Aurora Charter Oak Behavioral Health Care

;

Defendant.

Case No.:

26STCV17380

Hearing Date:

August 7, 2026

Time:

10:00 a.m.

[Tentative] Order RE:

(1) Demurrer
to First Amended Complaint

(2) Motion
to Strike Portions of First Amended Complaint

MOVING PARTY: Defendant Aurora Charter Oak – Los Angeles,
LLC (erroneously sued as Aurora Behavioral Health Care)

RESPONDING
PARTY: Plaintiff Katarina Campbell

(1) Demurrer
to First Amended Complaint

(2) Motion
to Strike Portions of First Amended Complaint

The court considered the moving,
opposition, and reply papers filed in connection with this demurrer and motion.

DISCUSSION

Demurrer to First Amended
Complaint

Defendant
Aurora Charter Oak – Los Angeles, LLC (erroneously sued as Aurora Behavioral
Health Care) (“Defendant”) demurs to the First Amended Complaint filed by
plaintiff Katarina Campbell (“Plaintiff”) in its entirety.

The

court sustains the demurrer because the First Amended Complaint does not state facts sufficient to constitute a cause of action. (Code Civ. Proc., § 430.10, subd. (e).) Psychiatric centers are immune from civil liability for the involuntary detention and treatment of a person suffering from a mental disorder. (Welf. & Inst. Code, § 5278.) Plaintiff's First Amended Complaint seeks to hold Defendant liable for detaining her on a "5150 hold"—that is, involuntary detention under Welfare and Institutions Code section 5150—and for administering medication against her will. (Complaint pp. 1-3.) By the plain text of section 5278, Defendant is immune from liability for that conduct.

The burden is on the plaintiff "to articulate how it could amend its pleading to render it sufficient." (Palm Springs Villas II Homeowners Assn., Inc. v. Parth, (2016) 248 Cal.App.4th 268, 290.) To satisfy that burden, a plaintiff "must show in what manner he can amend his complaint and how that amendment will change the legal effect of his pleading." (Goodman v. Kennedy, (1976) 18 Cal.3d 335, 349.) The court finds that Plaintiff has not articulated the facts that Plaintiff could allege to render this cause of action against Defendant sufficient and therefore sustains the demurrer without leave to amend.

Motion to Strike Portions of First Amended Complaint

Defendant moves the court for an order striking portions of the First Amended Complaint. The court denies this motion because it is moot as a result of the court's order sustaining Defendant's demurrer to the First Amended Complaint without leave to amend for the reasons stated above.

ORDER

The court SUSTAINS defendant Aurora Charter Oak – Los Angeles, LLC (erroneously sued as Aurora Behavioral Health Care)'s demurrer to plaintiff Katarina Campbell's First Amended Complaint without leave to amend.

The court orders that all future hearings are advanced to the date of this hearing, August 7,

2026, and vacated.

The court orders
that this action is dismissed with prejudice.
(Code Civ. Proc., § 581, subds. (f)(1), (m).)

The court orders
defendant Aurora Charter Oak – Los Angeles, LLC (erroneously sued as Aurora Behavioral
Health Care) to give notice of this ruling.

IT IS SO ORDERED.

DATED: August 7, 2026

Robert B. Broadbelt III

Judge of the Superior Court